



Notification Waiver Determination

Egis Projects Asia Pacific - Fulton Hogan Egis O&M

Acquisition	Egis Projects Asia Pacific Pty Limited (EPAP), which is a wholly owned subsidiary of Egis S.A. (Egis), applied for a notification waiver in respect of EPAP's proposed acquisition of the 50% of shares in Fulton Hogan Egis O&M Pty Ltd (FHE) which it does not already own, as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	22 April 2026

Parties to the Acquisition	The target, FHE, was incorporated in December 2015 as a joint venture between EPAP and Fulton Hogan Industries Pty Ltd (Fulton Hogan Industries). FHE currently supplies operation and maintenance services (i.e., asset management, incident response, maintenance, and capital works to ensure safety, efficiency, and availability) to the WestConnex project and, in future, will supply facilities management services for the under-construction M6 tunnel project, also in Sydney. To date, the supply of facilities management services for the M6 tunnel project is FHE's only non-WestConnex related business. The acquirer, EPAP, is a wholly owned subsidiary of Egis S.A., a France-based engineering, consulting and operation services company. In Australia, Egis S.A. (via its subsidiaries) provides façade design and engineering services, building sustainability services, multi-disciplinary engineering consulting services, architecture services, and enterprise asset management solutions. EPAP conducts business development activities relating to operations and maintenance services supplied by FHE and other subsidiaries. The vendor, Fulton Hogan Industries, provides services in pavement, asphaltting, civil construction, and road and asset maintenance across Australia in sectors including defence, roads, and airports. Other than through the existing FHE joint venture, neither EPAP nor any of its connected entities are involved in the supply of operations, maintenance, and facilities management services for roads and tunnels in Australia.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and

	had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. Outside the existing FHE joint venture arrangement, there are no horizontal overlaps between EPAP (including its connected entities) and FHE in the supply of operations, maintenance, and facilities management services for roads and tunnels in Australia. b. The Acquisition will not result in any reduction in the number of suppliers of operations, maintenance, and facilities management services for roads and tunnels in Australia. c. There are alternative suppliers of operations, maintenance, and facilities management services for roads and tunnels in Australia. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act